

5418 Torts – Section 12653
Fall 2026
Mr. Sanders

Course Outline
Christie, et al., 6th ed.

Week 1 pp. 1-40 Introduction & Intentional Torts

Introduction

The Aims of Tort Law
Adaptability to New Situations
Robertson v. Rochester Box
The History of Tort Law
The Forms of Action: *Scott v. Shepard*
What does it mean to be responsible?
The Modern Landscape

Intentional Torts

Intention: *Beauchamp v. Dow Chem.*; *Wagner v. State*

Week 2 pp. 40-88; 114-142 Intentional Torts, Continued

Battery: *Leichtman v. WLW Jacor Comms., Inc*
Assault: *Dickens v. Puryear*
Transferred Intent & Participation Liability: *Singer v. Marx*; *Halberstam v. Welsh*
False Imprisonment: *McCann v. Wal-Mart Stores, Inc.*; *Fojtic v. Charter Medical Corp.*
Trespass to Land: *John Larkin, Inc. v. Marceau*
Trespass to Chattel & Conversion
NOTE: We are skipping the materials on Intentional Infliction of Emotional Distress.
Defenses
 Consent: *Hellriegel v. Tholl*; *Reavis v. Slominski*
 Self Defense: *Silas v. Bowen*

Week 3 pp. 142-206 Intentional Torts & Negligence (Breach)

Intentional Torts Continued

Defenses, Cont.
 Defense of Property: *Brown v. Martinez*
 Discipline
 Necessity: *Ploof v. Putnam*; *Vincent v. Lake Erie Transportation Co.*

Negligence

Historical Development: *Brown v. Kendall*
The Prima Facie Case of Negligence
The Standard of Care: *Vaughan v. Menlove*; *Delair v. McAdoo*;

Variations on the Standard of Care: *Goss v. Allen*; *Creasy v. Rusk*; *Haley v. London Elec.*
The Calculus of Risk: *Barker v. City of Philadelphia*

Week 4 pp. 206-277 Negligence (Breach)

The Calculus of Risk Continued: *U.S. v. Carroll Towing*; *Pitre v. Employers Liability Assurance Corp.*

Establishing the Standard of Care: the Function of Judge and Jury: *Baltimore & Ohio Railroad Co. v. Goodman*; *Pokora v. Wabash Railway Co.*

Establishing the Standard of Care by Deference to the Legislature – Negligence per se: *Martin v. Herzog*; *Tedla v. Ellman*; *Barnum v. Williams*; *Perry v. S.N.*

Proof of Negligence – Custom and Expert Testimony

Custom: *Dempsey v. Addison Crane*

Malpractice: *Shilkret v. Annapolis Emergency Hosp. Assn.*; *Helling v. Carey*

Week 5 pp. 278-349 Negligence (Breach) & Negligence (Duty)

Negligence (Breach)

Malpractice, continued: *Miller v. Kennedy*

Circumstantial Evidence – Res Ipsa Loquitor: *Byrne v. Boadle*; *Morejon v. Rais Construction Co.*; *Swiney v. Malone Freight Lines Inc.*; *Ybarra v. Spangard*

Negligence (Duty)

What is Duty and How Do Courts Decide?

Foundational Duty Rules: *Thompson v. Kaczinski*; *Brown v. Kerr*; *Palsgraf v. Long Island R.R. – Part 1*

Week 6 pp. 349-424 Negligence (Duty)

Affirmative Duties to Warn or Rescue: *Price v. E.I Dupont de Nemours & Co.*; *Grimes v. Kennedy Krieger Institute, Inc.*; *Farwell v. Keaton*; *Maldonado v. Southern Pacific*; *Thompson v. County of Alameda*; *Uhr v. East Greenbush Central School Dist.*

No Duty Based on Public Policy: *Strauss v. Belle Realty Co.*; *Graff v. Beard*

Week 7 pp. 424-463; 505-540; 560-577 Negligence (Duty)

Landowner Liability: *Cochran v. Burger King, Inc.*; *Nelson v. Freeland' Bennett v. Stanley*; *Posecai v. Wal-Mart*

Immunities (I will give a lecture on the various types of Immunities you should skim the material.) Special Duties Based on Type of Harm

Emotional Harm: *Falzone v. Busch*; *Portee v. Jaffee*; *Catsouras v. California Highway Patrol*; *Boyles v. Kerr*

Wrongful Life/Birth (We will skip over these materials. I will say a few words about these torts.)

Economic Harm: *Aiken v. Debow*

Week 8 pp. 579-653

Causation & Scope of Liability

Cause in Fact

General Principles

Establishing Causation -- Sufficiency of the Evidence: *Stubbs v. City of Rochester*, *Daly v. Bergstedt*; *General Electric v Joiner*; *Matsuyama v Birnbaum*

Multiple Causes and Defendants: *Kingston v. Chicago & Northwest Railway Co.*; *Summers v. Tice*; *Sindell v. Abbott Laboratories*

Scope of Liability

Introduction

Foundational Cases: *In Re Polemis*; *Palsgraf v. Long Island R.R. Part II*

Week 9 pp. 653-725

Scope of Liability & Plaintiff's Conduct

Scope of Liability Continued

Foundational Cases Continued: *Wagon Mound I*

Application in Newer Cases: *Hughes v. Lord Advocate*; *Doughty v. Turner Mfg.*; *In re Kinsman*; *Wagon Mound II*

Intervening Cause: *Latzel v. Bartek*; *Brauer v. N. Y. Central & Hutson River R.R.*

Plaintiff's Conduct

Contributory Negligence: *Butterfield v. Forrester*

Week 10 pp. 725-822

Plaintiffs Conduct, Apportionment & Strict Liability

Plaintiff's Conduct and Apportionment

Comparative Negligence: *Hoffman v. Jones*; *Bradley v. Appalachian Power Co.*

Assumption of the Risk: *La Frenz v. Lake County Fair Board*; *Jones v. Three Rivers Management Corp.*; *Herod v. Grant*; *Auckenthaler v. Grundmeyer*

Avoidable Consequences, Mitigation of Damages

Multiple Parties

Vicarious Liability: *Wong-Leong v. Hawaiian Independent Refinery, Inc.*; *Jones v. Healthsouth Treasure Valley Hospital*

Imputed Contributory Negligence

Apportionment, Joint & Several Liability and Contribution: *Walt Disney World Co. v. Wood*

Strict Liability

Animals: *Duren v. Kunkel*

Week 11 pp. 822-905

Strict Liability; Products Liability

Strict Liability Continued

Dangerous Activities (Origins): *Fletcher v. Rylands*; *Rylands v. Fletcher*

Abnormally Dangerous Activities: *Loose v. Buchannan*; *Klein v. Pyrodyne*; *Indiana Harbor Belt*

v. American Cyanamid; Foster v. Preston Mill
The Coase Theorem

Products Liability

Negligence – Destroying the Privity Barrier: *MacPherson v. Buick Motor Co.*
Breach of Warranty
Strict Liability in Torts: *Greenman v. Yuba Power Products, Inc.*

Week 12 pp. 905-995 Products Liability Continued

The Concept of Defect in Products Liability today
 Manufacturing Defects: *Smoot v. Mazda Motors*
 Design Defects: *Branham v. Ford Motor Co.; Riley v. Becton Dickinson*
 Warning Defects: *Lewis v. Sea Ray Boats, Inc.; Burke v. Spartanics Ltd.; Feldman v. Lederle Labs.*
Defendants and Interests Covered by Products Liability
Defenses
Plaintiff's Behavior

Week 13 pp. 996-1058 Products Liability Continued and Nuisance

Products Liability Continued

Pre-Emption: *Bates v. Dow Agrosciences LLC*
Compliance with Regulations
Products Liability in Other Countries

Nuisance

NOTE: We will do as much of the nuisance chapter as time permits. If we run short of time, we will move on to the damages chapter.

Overview (also reread the *Larkin* case on page 79)
Private Nuisance: *Crosstex North Texas Pipeline v. Gardiner; Impellizzerri v. Jamesville Federated Church*
Remedies: *Boomer v. Atlantic Cement Co.*
Public Nuisance: *State v. Lead Industries Association*
Private Enforcement of a Public Nuisance: *Graceland Corp. v. Consolidated Laundries Corp.*

Week 14 pp. 1059-1149 Damages

Categories of Compensatory Damages: *Seffert v. Los Angeles Transit Lines; Wainwright v. Fontenot; McDougald v. Garber*
Indirect Non-fatal Injury to Others (spousal and parent-child consortium): *Roberts v. Williamson*
Damages in Death-Related Tort Claims: *Green v. Bittner*
Attorney Fees and Contingency Fee.

Other Information

Instruction Mode: This is a face-to-face class.

Course Materials: The casebook for this course is Christie, et al, Cases and Materials on The Law of Torts, 6th ed. (West, 2019).

Office hours: I will have office hours right after class each day of class. If you have a class after torts, I will be available after 1:00 p.m. My email address is sanders@uh.edu. My office phone is (713) 743-2125.

Attendance: The usual law school attendance rules apply. Per ABA guidelines, the Law Center has a minimum 80% attendance policy for students. Students are expected to attend classes in person.

Exam: There will be one final examination at the end of the semester. The examination is open book. The examination will be part multiple choice and part essay weighted in favor of the essay.

There are five teaching assistants for this class: Madison Arora marora4@CougarNet.UH.EDU, Audrey Germany aigerman@CougarNet.UH.EDU, Abigail Krasinski arkrasin@CougarNet.UH.EDU, Zachary Nanni, ztnanni@CougarNet.UH.EDU, and Tifani Watson tdwatson@CougarNet.UH.EDU

Objectives: The objectives of the course are to help the student to

- understand and identify tort law principles, theories, and policies
- identify and consider ethical and professional questions raised by the course materials
- have knowledge and understanding of substantive tort law
- understand, identify, and articulate policy arguments commonly used in tort law
- articulate and express a well-informed opinion regarding torts-related issues; and
- develop skills in legal analysis, reasoning, and communication related to tort law.

Artificial Intelligence Use

I will discuss the use of AI at the beginning of the semester. I am in favor of students learning about and using AI but one must be careful. It can become a crutch that gets one through courses without committing to the effort needed to master the materials. For example, learning how to brief a case (i.e. generate an overview of the facts, reasoning and holding of a case) is an important skill for first year students. It requires one to wrestle with what is and is not important in cases and how best to summarize the case. Using AI to achieve this for you is to cheat yourself out of an important learning experience. I would add that any use of AI is not permitted on examinations.

Honor Code

UHLC Honor Code applies to all aspects of this course. You are responsible for knowing all Honor Code provisions and for complying with the Honor Code. Please inquire if you have any questions regarding how the Honor Code's provisions apply to specific activities or situations related to this course. Your continuing enrollment in this course is deemed to be a pledge by you under the Honor Code to comply with the Honor Code in relation to this course and to comply with the instructions in the course syllabus.

The University and the Law Center have asked me to include the following additional information:

Mental Health and Wellness Resources

The University of Houston has a number of resources to support students' mental health and overall wellness, including CoogsCARE and the UH Go App. UH Counseling and Psychological Services (CAPS) offers 24/7 mental health support for all students, addressing various concerns like stress, college adjustment and sadness. CAPS provides individual and couples counseling, group therapy, workshops and connections to other support services on and off-campus. For assistance visit uh.edu/caps, call 713-743-5454, or visit a Let's Talk location in-person or virtually. Let's Talk are daily, informal confidential consultations with CAPS therapists where no appointment or paperwork is needed.

Need Support Now? - If you or someone you know is struggling or in crisis, help is available. Call CAPS crisis support 24/7 at 713-743-5454, or the National Suicide and Crisis Lifeline: call or text 988, or chat 988lifeline.org.

Title IX/Sexual Misconduct

Per the UHS Sexual Misconduct Policy, your instructor is a "responsible employee" for reporting purposes under Title IX regulations and state law and must report incidents of sexual misconduct (sexual harassment, non-consensual sexual contact, sexual assault, sexual exploitation, sexual intimidation, intimate partner violence, or stalking) about which they become aware to the Title IX office. Please know there are places on campus where you can make a report in confidence. You can find more information about resources on the Title IX website at <https://uh.edu/equal-opportunity/title-ix-sexual-misconduct/resources/>.

Reasonable Academic Adjustments/Auxiliary Aids

The University of Houston is committed to providing an academic environment and educational programs that are accessible for its students. Any student with a disability who is experiencing barriers to learning, assessment or participation is encouraged to contact the Justin Dart, Jr. Student Accessibility Center (Dart Center) to learn more about academic accommodation and support that may be available to them. Students seeking academic accommodation will need to register with the Dart Center as soon as possible to ensure timely implementation of approved accommodation. Please contact the Dart Center by visiting the website: <https://uh.edu/accessibility/> calling (713) 743-5400, or emailing jdcenter@Central.UH.EDU.

The Student Health Center offers a Psychiatry Clinic for enrolled UH students. Call 713-743-5149 during clinic hours, Monday through Friday 8 a.m. - 4:30 p.m. to schedule an appointment.

The A.D. Bruce Religion Center offers spiritual support and a variety of programs centered on well-being.

The Center for Student Advocacy and Community (CSAC) is where you can go if you need help but don't know where to start. CSAC is a "home away from home" and serves as a resource hub to help you get the resources needed to support academic and personal success. Through our Cougar Cupboard, all students can get up to 30 lbs of FREE groceries a week. Additionally, we provide 1:1 appointments to get you connected to on- and off-campus resources related to essential needs, safety and advocacy, and more. The Cougar Closet is a registered student organization advised by our office and offers free clothes to students so that all Coogs can feel good in their fit. We also host a series of cultural and community-based events that fosters social connection and helps the cougar community come closer together. Visit the CSAC homepage or follow us on Instagram: @uh_CSAC and @uhcupbrd. YOU belong here.

Women and Gender Resource Center

The mission of the WGRC is to advance the University of Houston and promote the success of all students, faculty, and staff through educating, empowering, and supporting the UH community. The WGRC suite is open to you. Stop by the office for a study space, to take a break, grab a snack, or check out one of the WGRC programs or resources. Stop by Student Center South room B12 (Basement floor near Starbucks and down the hall from Creation Station) from 9 am to 5 pm Monday through Friday.

Recording of Class

Students may not record all or part of class, livestream all or part of class, or make/distribute screen captures, without advanced written consent of the instructor. If you have or think you may have a disability such that you need to record class-related activities, please contact the Justin Dart, Jr. Student Accessibility Center. Classes are recorded by the IT Department for this purpose. If you have an accommodation to receive recorded class-related activities, those recordings may not be shared with any other student, whether in this course or not, or with any other person or on any other platform. Failure to comply with requirements regarding recordings will result in a disciplinary referral to the Dean of Students Office and may result in disciplinary action.